

25VECV07395 25VECV07395

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-02

Motion: PLAINTIFF'S MOTION FOR TRIAL PREFERENCE

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Case Number: 25VECV07395 Hearing Date: September 2, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

GERALD RAY

SKYLES, an individual;

Plaintiff,

vs.

HARRY THOMASON, an individual; and

DOES 1-25, Inclusive.

Defendant.

CASE NO: 25VECV07395

[TENTATIVE]

ORDER RE:

PLAINTIFF'S

MOTION FOR TRIAL PREFERENCE

Dept. W

8:30 a.m.

September 2, 2026

[TENTATIVE] ORDER: The Court DENIES
Plaintiff's Motion for Trial Preference.

Background

This

is a personal injury case. Plaintiff Gerald Skyles alleges that on June 19, 2025, he was walking along a crosswalk when he was struck by a vehicle driven by Defendant Harry Thomason. Plaintiff suffered serious injuries as a result of this collision, including a broken pelvis, a traumatic brain injury, and a lumbar fracture.

On December 30, 2025, Plaintiff brought suit against Defendant, alleging both motor vehicle and general negligence.

Now, Plaintiff moves for a trial preference.

Discussion

Plaintiff requests this Court grant a trial preference under CCP § 36(d). (Mot. for Trial Preference, p. 3:10-18.)

CCP § 36(d) provides that, "In its discretion, the court may also grant a motion for preference that is accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference." (CCP § 36(d) [emphasis added].)

Here, Plaintiff fails to provide clear and convincing medical documentation suggesting that this preference is necessary. Plaintiff asserts that he has been diagnosed with an aggressive and malignant form of prostate cancer. (Mot. for Trial Preference, Riccitelli Decl. ¶¶ 3-5.) This cancer has spread to his bones, making it unlikely he will be able to participate in the

trial currently scheduled for November of 2027. (Ibid.) In support of this motion, Plaintiff provides only the declaration of Andrew Riccitelli. (See generally, Mot. for Trial Preference.) This is insufficient, as a lawyer's declaration does not amount to convincing medical documentation.

In support of this motion, Plaintiff wrongly cites to CCP § 36.5, which states that, "[a]n affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36." (CCP § 36.5 [emphasis added].) As Defendant points out in the Opposition, this rule only applies to motions for trial preference brought under CCP § 36(a). Plaintiff is moving under CCP § 36(d). Thus, a declaration is not enough. Notably, Plaintiff offers no Reply in dispute of this argument.

For these reasons, the Court DENIES Plaintiff's Motion for Trial Preference.

Conclusion

The Court DENIES Plaintiff's Motion for Trial Preference.

IT
IS SO ORDERED, Defendant TO GIVE NOTICE.

September 2, 2026

Judge of the Superior Court